

LAW OF TORTS PPL 301

TOPICAL COMPENDIUM 5

NEGLIGENCE

INTRODUCTION

1. This is the most important and dynamic of all torts. This tort pervades all aspect of our society. For instance, Doctors are sued for negligence in handling patient's cases wrongly. In **Whitehouse V. Jordan**, a mother was having difficulty giving birth. The doctor in a bid to assist her adopted the trial by forceps approach. When the child was born the child suffered brain damage. She sued the doctor for negligence because his mode of application of the trial by forceps was below the standard of care expected of a reasonable man of his standing. The House of Lords dismissed the case because she failed to establish this negligence. Similarly, manufacturers are sued for negligently exposing the public to harmful products, transporters are sued for injuring their passengers, banks are sued for negligence in handling customers cases, financial advisers are sued for negligently giving wrong financial advises etc.
2. Negligence is a big tort because, all torts are categorized as strict liability or fault based. The bulk of torts are fault based. Among the fault based torts, every tort is either intentional or based on negligence. The tort of negligence is the only tort that is solely based on negligence. It is thus a very prominent tort.
3. Furthermore, even where a tortious act falls under other torts such as Battery or Nuisance, an action would in some cases lie both in that tort (that is battery or nuisance) and in negligence as well.
4. According to **Winfield and Jolowicz** Negligence can be defined as the breach of a legal duty to take care which results in damage undesired by the defendant to the plaintiff.
5. In the English case of **Blyth V Birmingham Water Works Co**, Anderson B. defined Negligence as: *"the omission to do something which a reasonable man, guided by those considerations which ordinarily regulate the conduct of human affairs, would do or doing something which a prudent or reasonable man would not do."*

6. In the Nigerian Case of **Odinaka V. Moghalu**, Negligence was defined as: "the Omission to do something which a reasonable man, under similar circumstances would do or doing something which a reasonable or prudent man would not do."
7. It is important to note that a tortfeasor does not intend the harm in negligence. The Tort of Negligence can only arise where the tortfeasor is careless or is indifferent or reckless as to whether or not it occurs.
8. Elements Of Negligence means what a plaintiff must prove to succeed in an action for negligence. The plaintiff must prove the following to succeed in action for negligence:
 - That the defendant owed the plaintiff a duty of care.
 - The defendant breached the duty of care
 - The plaintiff suffered damage as a result of the breach.

9. THAT THE DEFENDANT OWED THE PLAINTIFF A DUTY OF CARE

- This is the foundational element of the concept of negligence. The first question the court must resolve in an action for negligence is whether the defendant owed a duty of care to the plaintiff.
- In general, a duty of care is owed where it is foreseeable that if the defendant does not exercise due care, the plaintiff will be harmed. This is called the foreseeability test or the neighbourhood principle.
- The foreseeability test or neighbourhood principle was laid down in the case of **DONOGHUE V STEVENSON** by Lord Atkin. According to Lord Atkin:

"...The rule that you are to love your neighbour becomes, in law, you must not injure your neighbor; and the lawyers question, who is my neighbor? Receives a restricted reply. You must take reasonable care to avoid acts or omissions which you can reasonably foresee would be likely to injure your neighbor. Who then is my neighbour? The answer seems to be – persons who are so closely and directly affected by my acts that I ought reasonably to have them in contemplations as being so affected when I am directing my mind to the acts or omissions which are called in question."

- In **Donoghue V. Stevenson**, Mrs Donoghue purchased a bottle of ale from a shop. The ale was manufactured by a breweries owned by Mr. Stevenson. The ale was in brown opaque bottle. She poured a drink for herself from the bottle into a transparent glass and drank. What she poured into the glass was 80% of the drink. As she turned the remaining drink into her cup a dead decomposed snail fell out of the bottle into her cup. She was nauseated by the sight of the snail and fell sick. She sued the manufacturer. Mr Stevenson argued in court that there was no Privity of contract between them because she did not buy the ale from him. The court held that even though there was no Privity of contract between them, Mr Stevenson was liable to her in negligence.
- Therefore your neighbour is anyone anywhere in the world who would be injured if you are negligent in your conduct. The law is of the position that you owe your neighbour a duty of care.
- The courts will generally, hold that a duty care exists in the following circumstances:
 - The driver of a car owes a duty of care to other road users such as pedestrians.
 - A manufacturer of goods owes a duty of care to those who consume the goods.
 - A house owner owes a duty of care to lawful visitors that the house is reasonably safe.
 - The employer in a factory owes a duty of care to his employees that the factory is safe.
- The list is endless. In most situations in which a valid and proper relationship or interaction exist between people the law will impute a duty of care. In **BUCKLAND V GUILDFORD GAS, LIGHT AND CO** A girl of 13 years climbed a tree and was electrocuted by touching an overhead wire close to the tree and concealed by its branches. The wire had been recently installed by the defendant. It was held that the defendant had breached the duty of care.
- In **Ibekanu V. Ike**, the respondent was walking on the side of the road, when a Toyota Hiace bus driven by the appellant ran into him. This necessitated

his hospitalization and the amputation of his leg. The court held the appellant liable for negligence.

- **Osemobor V Niger Biscuit (1973).** In this case the plaintiff was eating some biscuit which he bought from a shop when he felt a hard object, he then found a decay tooth embedded in the biscuit, the plaintiff became ill and sue the manufacturer. The court applied the principle in **Donoghue v Stevenson** and held that the manufacturer owe a duty to ensure that the plaintiff does not suffer harm as a result of using the defendants goods.
- Also in case of **Nigeria Bottling Co. v. Constant Ngonadi (1985).** The plaintiff action appears to be based on negligence and breach of warranty of fitness. Under the provision of section 15(a) of the former Bendel State of Nigeria Sales of Goods Law. In that case Maitlo J in the High Court addressed himself to two issues;
 1. Whether the defendant known for what purpose the plaintiff bargain for and bought the fridge
 2. Whether the defendant gave the plaintiff an oral warranty of fitness of the fridge for the purpose of which it was bought.

What happened was that the plaintiff bought a refrigerator from the defendant company and the plaintiff complained that the refrigerator was not working properly. The defendant's men carried the refrigerator and carry out repairs before returning it back to the plaintiff. Some few weeks after they returned it, the refrigerator exploded giving the plaintiff extensive burns. The plaintiff then brought an action alleging negligence on the part of the defendant and breach of warranty of fitness for the purpose under the Sales of Goods Law.

The trial judge held that the defendant knows for what purpose the plaintiff required the refrigerator and was satisfied that the defendant guaranteed that the refrigerator would serve the plaintiff purpose. The judge therefore said that the defendant cannot assert that they merely sell the refrigerator and not manufacture it. The judge said that the defendant gave the condition that the goods was reasonably fit for the purpose of for which it was bought and that they owe a duty of care to the plaintiff. The plaintiff was awarded damages for Negligence. The defendant appealed to the Supreme Court,

the Supreme Court upheld the judgment of the high court saying that the defendant was negligent in supplying a defective refrigerator to the plaintiff. The Supreme Court said *inter alia*, where as in this case, a warrantee was implied by statute and the plaintiff action was based on the breach of that warrantee in order words, the warrantee forms the basis of the action in Negligence, the onus was still on the plaintiff/respondent to proof the special relationship out of which arose the duty of care and what amounted to a breach of that duty

- In the case of **HEDLEY BYRNE & CO V HELLER AND PARTNERS LTD** the court introduced a new duty of care by noting that where a person gives financial advice to another person and the advice turns to be a mis-statement that caused the person that received the advice to incur financial loss, then the person who gave the advice would be liable for breach of duty of care. In **ROSS V CAUNTERS** It was held that a lawyer who negligently drafts a will and causes a beneficiary of the will to loose what he ordinarily ought to have received from the will is liable for breach of duty of care.
- This position was adopted in the Nigerian case of **Owena Bank V. Emok** in which Sanusi JCA stated that “a banker is vicariously liable to its customers where he fails or neglects to adhere strictly to its customers instruction or where it fails to observe banking rules and regulations and such non compliance to customer’s instruction or banking rules and regulations led to the customer incurring any loss, damage or injuries”.
- However in **Rondel V. Worlsey**, a client who was convicted in a criminal trial and sent to prison sued his counsel alleging negligence in the conduct of his defense in the criminal proceedings in that the counsel failed to conduct his defence to secure his discharge. The house of lords held that the barrister was not liable in negligence. The barrister does not owe the client a duty of care in the circumstances. His duty is to carry out the defence to the best of his ability.
- Students should familiarize themselves with Court’s enunciation of the Duty of care in the following cases:
 - *Conoil Plc v Solomon*, [2017] 3 N.W.L.R. (PT 1551) 50

➤ *N.E.P.A. V. ANWAL (2011) 5 NWLR [PART 1241] 571*

- The courts will refuse to hold that a duty of care exists in the following circumstances:
 - i. Where the defendant cannot reasonably be expected to have foreseen the injury: The court will not hold that a duty of care exists if he could not be reasonably expected at the time of doing the action to have known that it could result in injury. In **BOURHILL V YOUNG** A pregnant woman came out of a tram and heard the sound of the defendant crashing his motorcycle fifty yards away. She did not see the accident. But the loud sound of the crash she heard caused her severe shock and distress and eventually caused her to suffer miscarriage. She sued the defendant for negligently causing her injury. The court held that the defendant could not reasonably have foreseen the likelihood of injury to her at the time of crashing his motorcycle and therefore owed her no duty of care.
 - ii. Where the Plaintiff was involved in an illegal activity: Where a plaintiff suffers injury as a result of an illegal act, the defendant would not be held to owe him a duty of care. In **ASHTON V TURNER**, the plaintiff and defendant were in a car escaping from a house they had just committed burglary in. The defendant was driving. As a result of the negligent driving of the defendant, the car had an accident and the plaintiff was injured. He sued the defendant for negligently causing him injury. The court held that the defendant owed no duty of care to the plaintiff and the plaintiff's action fails.

10. THAT THERE WAS A BREACH OF A DUTY OF CARE

- Once the court decides that the defendant owed the plaintiff a duty of care in a given circumstance, the court's next task is to determine whether the defendant has breached the duty of care. According to Kodilinye and Aluko, deciding whether the defendant has breached the duty of care occupies most of the court's time. To decide if the defendant has breached the duty of care, the court must apply the test of the "Reasonable Man."
- It is not sufficient that a duty of care is owed. The duty of care must actually be breached. In **White v Bassey**, a motorist was driving along

the street on a rainy day. It was proved that he did not speed and was not careless. A five year old boy dashed along the road and was knocked down by the car. It was held that the motorist had a duty of care all right along a highway particularly on a raining day not to speed and to be mindful of other road users. But in this particular case, since he had done what was expected of him under the circumstances he had not breach the duty.

- In law it is universally accepted that a man is in breach of the duty of care if he acts below the standard of care expected in the circumstances. In measuring the standard of care expected of a defendant, the court would apply the **reasonable man's test**. In essence, a defendant would have breached the duty of care if he acted below the standard of a reasonable man.

11. HOW THE COURT APPLIES THE REASONABLE MAN'S TEST

- This test simply states that: would a reasonable man in the position and circumstance of the defendant act the way he did? The reasonable man is a theoretical person used to measure the actions of the defendant. He is conceived as being neither unduly apprehensive or over confident. Lord Macmillan in the English case of **GLASGOW CORPORATION V MUIR** stated that the reasonable man's test is applied to make the court's decision objective and to remove all considerations of the personal characteristics or qualities of the defendant.
- In the case of **Hall v. Brooklands Auto Racing Club**, Green LJ defined the reasonable man as: "The man on the street or the man on the Clapham Omnibus." This means the average ordinary man on the street.
- In **ADIGUN V. A.G. OYO STATE**, Kayode Eso JSC defined the reasonable man in the Nigeria context as follows: "Except one has gone to England and appreciated the man who has goes to work in an Omnibus in Clapham area of London... the concept of 'Clapham Omnibus' is completely lost to him...A reasonable person here [Nigeria] may be a pleasant house wife, shopping for a meal in

Sandgrouse market, Lagos and not the wife of an executive shopping for her grocery in Moloney Supermarket; he may be the ordinary worker in Kano native city, living on his tuwo and not the senior assistant secretary cruising in his officially produced airconditioned 505 SR... It is what this reasonable man sitting as an impartial observer thinks that would matter.”

- In determining if the defendant acted as a reasonable man, the court will apply the test of Intelligence, knowledge and Skill.
- **Intelligence**: The court in deciding whether the defendant's conduct was reasonable would apply the test of a person of average intelligence in the circumstance of the defendant. If for instance, the court is weighing the action of Bola a 40 years old man, it would adopt the standard of a 40 years old man of average intelligence. In Vaughan V. Menlove Tindal CJ stated that it is no defense that the defendant acted to the best of his own judgment if his best is below what is expected of a man of ordinary intelligence or reasonable person in his position of life.
- **KNOWLEDGE**: The court would also check the extent of knowledge of the defendant. For instance, in weighing the action of Bola, a 40 years old man who has a first school leaving certificate as his only qualification. The court would use the standard of a 40 years old with a first school leaving certificate. However, knowledge is expected of persons who hold certain position. If for instance, Bola is one of the 3 elders of his community who are knowledgeable in the history of the community, his action would be weighed by the standard of one who holds such a position. In Yachuk V. Oliver Blais Co. Ltd a 9 year old persuaded a garage attendant to give a tin of petrol on the false pretense that his mom's car had run out of petrol some distance from the garage. The boy poured the petrol on some wood and set it ablaze severely injuring himself in the process. The court held that the garage attendant was negligent and rejected his defense of contributory negligence.

- **SKILL:** The court would also consider the skill of the defendant. For instance if Bola a 40 years first school leaving certificate holder has worked as a driver for 20 years. His action would be weighed against a driver with 20 years' experience. Thus, for example, in the *Wagon Mound* the privy council took the view that shipowners were liable for a fine caused by discharging oil from the ship into Sydney Harbour, because their chief enquire ought to have known that there was a real risk of oil catching fire. Where a person holds himself as a professional, he must live up to the reputation and skill of a professional. In **Cassidi V. Minister of Health**, Cassidy sued the minister of health for negligence of doctors who performed an operation on him. Before the operation, Cassidy had two stiff fingers but after the operation he had four stiff fingers. It was held that the hospital authority was vicariously liable for negligence of its servants and there was liability whether the doctors did the act for reward or not.
- Students should familiarize themselves with the case of **UBA Ltd V Ekene Dilichukwu 1999 12 NWLR pt 629pg 132**.
- Students should also familiarize themselves with **BS Nigeria Ltd v. Ometraco Ltd (2011) 10 NWLR (PART 1255) 290**
- The court in deciding on whether there has been a breach of duty of care and what a reasonable man would have done in the circumstance would take into consideration the following elements:
 - **The Likelihood of Harm:** Where the chances of injuring another person is high, the court will hold that the defendant has breached the duty of care. Thus if Bola lives in the fourth floor of a building and he throws an object out of the window into the public road and Joy who is walking on the road is injured Bola would be liable. But if Bola throws a knife in the gutter in Old G.R.A. (Port Harcourt) and it flows to D/Line (Port Harcourt) and cuts Joy's leg, he would not be liable. In **BOLTON V STONE**, the plaintiff was injured by a cricket ball from the defendant's cricket ground. The court held that the defendant had not breached the duty of care as he had built a seven –foot high

fence around the cricket ground and that the cricket ground was far away from the road on which the plaintiff was injured. In **HILDER V ASSOCIATED PORTLAND CEMENT MANUFACTURERS LTD**, the plaintiff who was riding a motorcycle was injured by a football from a field close to the road. The court held the defendant liable as proper precaution had not been taken in terms of fencing and distancing the field from the road. In the words of Lord Wrights in **Northwestern Utilities Ltd v London Guarantee and Accident Co. Ltd** "The degree of care which the duty involves must be proportioned to the degree of risk involved if the duty of care should not be fulfilled.

- **The Seriousness of the Injury that is Risked**: In situations where heavy injury would result from accident or mishap, the court would hold the defendant liable. If Joy employs Bola to clean her window on the third floor of her building, she must provide him with safe climbing equipment. Where she fails to do this and he falls she would be liable. In **PARIS V STEPNEY BOROUGH COUNCIL**, the defendant employed the plaintiff (a one eyed man) as a mechanic in the vehicle maintenance department of the defendant council. They did not provide any goggles or other eye protection equipment. While working on a vehicle a piece of metal flew into his only good eye and blinded him. The court held that they were liable in not providing him with goggles.
- **The Importance of the Defendant's Activities**: Where the injury causing activity is of high importance to the city or community or country, the court may be reluctant to hold the defendant liable for negligence. In **BEIN V GOYER** it was held that a defendant would not be liable for breach of duty of care where his activities from which the injury arose was crucial and fundamental to the community.
- **The Cost and Practicability of avoiding harm**: The court would always balance the cost of preventive measure with the

accident. Where a defendant has done everything a reasonable man would have done and accident still occurs, the court would not hold the defendant liable. In **LATIMER V A E C LTD**, Heavy rains caused the floor of the defendant factory to be covered in oil and sawdust and to become very slippery. The defendant did everything to make his factory floor safe. Notwithstanding the plaintiff while working fell down and injured himself. It was shown in evidence that the only other thing the defendant could have done to make the factory safer was to close the factory. The court held that the defendant was not liable.

12. THE DIFFICULTY OF PROVING NEGLIGENCE

- In practice, the inequality in strength of the contending parties could make it difficult for the plaintiff to establish negligence. For instance where Joy has sues the University of Port Harcourt for misplacing her results. She would have challenges proving breach of duty of care as she does not have inside information on how the University of Port Harcourt processes results. In **Chinda & Others V. Shell British Petroleum Development Company Ltd** the plaintiffs as community leaders instituted this action in the High Court alleging that as a result of the defendant company's negligence in the control and management of their flare site, damage was done to the plaintiff's trees, lands and houses. It was held that the action failed because the plaintiff did not produce evidence of negligence in the defendant's operation of its flare sites.
- Similarly, In **Seismograph Services Ltd V. Benedict Onokpasa**, The respondent a college proprietor brought this action against the appellant company claiming compensation for damages to his college buildings as a result of the activities of the appellant. The question before the High Court was: 'Whether the respondent was entitled to compensation on the grounds that the seismic operations carried out by the appellant company prospecting for oil caused extensive damage to some buildings which the respondent had erected to house a college under his proprietorship?' The respondent based his case on a local 'expert'. The

appellant on the other hand based its defence on 3 seismograph experts. The trial court on the application of the respondent visited the operation site of the appellant company -location of the dispute in the action described as the Locus in Quo -. The High court ruled in favour of the respondent on the grounds that the visit to the locus in quo confirmed the assertions of the respondent's witness. The Court of Appeal overturned this decision on the grounds that: 'The burden was on the respondent to establish the negligence of the appellant company. The respondent had failed to establish this negligence to the satisfaction of the court in the face of the preponderance of the evidence of the appellants' expert witnesses.' The fact that the appellant was economically more advantaged than the respondent and could afford to bring in foreign experts did not sway the mind of the Court of Appeal which noted further that the respondent's witness was not an 'expert' witness as 'he was neither qualified nor versed in seismic operations' and that "it was not the duty of the trial judge to assist the respondent by garnering evidence from the locus in quo.'

- This is the primary criticism of the tort of negligence. For instance in **Whitehouse V. Jordan**, the mother was required to prove that the doctor had not exercised due care in the way and manner he applied trial by forceps on her even though she was not a doctor and she was not versed in the knowledge of trial by forceps.
- The Concept of Res Ipsa Loquitor was adopted to address this problem.

13. THE DOCTRINE OF RES IPSA LOQUITUR

- One device adopted by lawyers to ease the burden of proof in negligence is the common law maxim *Res Ipsa Loquitur* which removes the plaintiff's burden of establishing negligence by requiring the defendant to establish that he took all reasonable care.
- Res Ipsa Loquitor means the Thing speaks for itself. Res Ipsa Loquitur is a device of evidence that serves to shift the onus of proof from the plaintiff to the defendant. A plea of Res Ipsa Loquitur serves to reverse the principle of evidence that: "he who alleges must prove."

- Res Ipsa Loquitur is a rule of evidence that the mere fact that something happened raises an inference of negligence on the part of the defendant so that there is a prima facie case and he must make a defence.

- This doctrine was propounded in the case of *Scott v. London and St. Katherine's Dock Co* as follows:

‘Where the thing is shown to be under the management of the defendant or his servants, and the accident is such as in the ordinary course of things does not happen if those who have the management use proper care, it affords reasonable evidence, in the absence of explanation by the defendants that the accident arose from want of care.’

- From, the above statement, in order to rely on this doctrine, a plaintiff must establish two things:
 - That the thing causing the damage was under the control or management of the defendant or his servant.
 - That the accident was of such a kind as would not in the ordinary cause of things have happened without negligence on the defendant's part.
- In **Scott V. London & St. Katherine's Dock Co**, the plaintiff was passing in front of the defendant company's ware house when bags of sugar fell from the upper floor of the warehouse and injured him severely. The plaintiff could not prove negligence. Nevertheless, the court held the defendants liable for negligence.
- This doctrine was applied in the case of **BYRNE V BOADLE** when a bag of flour fell off an upstairs window and injured the defendant. In Nigeria, the doctrine was applied in the case of **IFEAGWU V TABANSI MOTORS LTD.** The plaintiff was severely burnt when a petrol tanker belonging to the defendant crashed into an electric pole in front of the plaintiff's shop, overturned, and burst into flames. The defendant was liable.
- In **Strabarg Construction Nigeria Ltd V. Ogarekpe**, the respondent was an employee of the appellant company. While he was standing on a mounted crane and working on a very high tower, the crane suddenly lost balance and fell injuring him severely. The court held that the doctrine of Res Ipsa Loquitur was applicable.

- As regards the doctrine of negligence, students should familiarise themselves with the following cases:

- Oando (Nig) PLC V. Adijere (W/A) Ltd (2013) 15 NWLR (Pt. 1377) 374
- P.S.H. S. M.B. V. Goshwe (2013) 2 NWLR (Pt. 1338) 383.

14. THAT THE PLAINTIFF SUFFERED DAMAGES AS A RESULT OF THE BREACH OF DUTY OF CARE

- The Plaintiff must establish that he suffered damages as a result of the defendant's action. This means that the tort of negligence is **not** to be actionable per se. However, in cases where damages suffered are not proved to the satisfaction of the court then compensation for damages would not be awarded by the courts. In **Shell British Petroleum Development Company Ltd v. Chief G.B.A. Tiebo and others**, the Respondents brought this action as Plaintiffs in the High Court claiming among other things the sum of Two Million Naira for loss of source of drinking water and damage to Agricultural Raffia Palms. The case of the Respondent was that the Appellants negligently allowed the occurrence of a major oil spill into the River Nun and the surrounding Agricultural lands. The High Court decided in favor of the Respondents but stated that the Respondent failed to prove the loss of source of drinking water and the injury to the Agricultural Raffia Palms satisfactorily. In spite of this, the court awarded (among other damages) four hundred thousand Naira as compensation for damage to Raffia Palms and six hundred thousand Naira as compensation for loss of source of drinking water. On appeal, the decision of the High Court on these two compensations was overturned. The Supreme Court held that the award of four hundred thousand Naira and Six Hundred Thousand Naira as damages for what had not been proved was an error on the part of the trial court.

15. DEFENCES TO THE TORT OF NEGLIGENCE

1. **Contributory Negligence**: Contributory negligence means that the plaintiff's negligence contributed to the defendant's negligence. In **O'CONNEL V JACKSON** the plaintiff was riding his motorcycle on the high way but he did

not wear a crash helmet. The defendant in driving on high speed knocked the plaintiff. It was held that the plaintiff contributed to the negligence by riding a motorcycle on the high way without a helmet. In **GREGORY V KELLY** contributory negligence was held when the plaintiff entered a car belonging to the defendant that had no breaks. However, in *Okuwodu V Alli* it was held that a plea of contributory negligence could not stand against a plaintiff who rested his arm on the window of his vehicle while it was in motion and the defendant carelessly rammed his car into the plaintiff's car crushing his hand.

2. **Volenti Non Fit Injuria**: This translates as no injury is done to one who consents. It implies that a plaintiff cannot claim damages for something he volunteers for. A person may consent by contract or by his actions. In **BUCKPIT V OATES** the plaintiff entered the defendant's vehicle. There was a sticker in the car that said the driver of the car was not liable for the injury of anyone who enters the car. The plaintiff was injured by the defendant's careless driving. It was held that the plaintiff had consented that the defendant would not be liable when he saw the sticker and still entered the car. In Nigeria, this defense would avail a defendant who has a notice: 'cars parked at owner's risk' against a plaintiff who parked a car in the premises and the car is stolen.

3. **NOVUS ACTUS INTERVENIENS**, THAT IS A NEW ACT INTERVENING: This means the injury was as a result of a new and independent act occurring after the defendant's actions. In practice the intervening act may have been caused by a third party or even by the plaintiff himself. In this regard, the Court would apply the "But For" test. This means but for the intervening act, the plaintiff would not have been injured. In **Ekwo V. Enechukwu** the plaintiff was severely injured in the hand after being involved in an accident while riding in a truck that was being driven by the defendant. Immediately after the accident the defendant offered to take the plaintiff to the hospital but the plaintiff refused and instead opted for traditional treatment under a Native doctor. Seven days later the plaintiff went to a hospital after the wound had become infected and gangrenous and was amputated. The doctor testified in court that the amputation was only necessary because the wound had become infected because the plaintiff did not come to the hospital immediately. The court held that the defendant was not liable as it was the plaintiff's intervention that had caused his injury. The exception to this defence is the Egg Shell Principle. In

Robinson v Post Office, the plaintiff was injured by the negligence of his employers the defendant. The plaintiff was taken to a hospital where anti-tetanus syrup was administered to him by a Doctor. Unfortunately, the plaintiff was allergic to that injection and suffered brain damage. He sued the defendant for that damage and the question was that whether the defendant was liable given that the same syrup was offered to other people without any problem. It was held that the defendant was liable. He must take his victim as he finds him, since it was his action that brought the plaintiff into that condition in the first place.